

590

1 of 2

Vol. 590 (Pp. 1-431; 901-969)

UNITED STATES REPORTS

Part 1

PRELIMINARY PRINT

VOLUME 590 U. S. - PART 1

PAGES 1-431; 901-969

OFFICIAL REPORTS
OF
THE SUPREME COURT

APRIL 20 THROUGH MAY 29, 2020

CHRISTINE LUCHOK FALLON

REPORTER OF DECISIONS



NOTICE: This preliminary print is subject to formal revision before the bound volume is published. Users are requested to notify the Reporter of Decisions, Supreme Court of the United States, Washington, D.C. 20543, pio@supremecourt.gov, of any typographical or other formal errors.

For sale by the Superintendent of Documents, U. S. Government Publishing Office
Washington, D.C. 20402

JUSTICES
OF THE
SUPREME COURT
DURING THE TIME OF THESE REPORTS

JOHN G. ROBERTS, JR., CHIEF JUSTICE.
CLARENCE THOMAS, ASSOCIATE JUSTICE.
RUTH BADER GINSBURG, ASSOCIATE JUSTICE.
STEPHEN BREYER, ASSOCIATE JUSTICE.
SAMUEL A. ALITO, JR., ASSOCIATE JUSTICE.
SONIA SOTOMAYOR, ASSOCIATE JUSTICE.
ELENA KAGAN, ASSOCIATE JUSTICE.
NEIL M. GORSUCH, ASSOCIATE JUSTICE.
BRETT M. KAVANAUGH, ASSOCIATE JUSTICE.

RETIRED

SANDRA DAY O'CONNOR, ASSOCIATE JUSTICE.
ANTHONY M. KENNEDY, ASSOCIATE JUSTICE.
DAVID H. SOUTER, ASSOCIATE JUSTICE.

OFFICERS OF THE COURT

WILLIAM P. BARR, ATTORNEY GENERAL.
NOEL J. FRANCISCO, SOLICITOR GENERAL.
SCOTT S. HARRIS, CLERK.
CHRISTINE LUCHOK FALLON, REPORTER OF
DECISIONS.
PAMELA TALKIN, MARSHAL.
LINDA S. MASLOW, LIBRARIAN.

SUPREME COURT OF THE UNITED STATES

ALLOTMENT OF JUSTICES

It is ordered that the following allotment be made of the Chief Justice and Associate Justices of this Court among the circuits, pursuant to Title 28, United States Code, Section 42, and that such allotment be entered of record, effective October 19, 2018, viz.:

For the District of Columbia Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the First Circuit, STEPHEN BREYER, Associate Justice.

For the Second Circuit, RUTH BADER GINSBURG, Associate Justice.

For the Third Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Fourth Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the Fifth Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Sixth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Seventh Circuit, BRETT M. KAVANAUGH, Associate Justice.

For the Eighth Circuit, NEIL M. GORSUCH, Associate Justice.

For the Ninth Circuit, ELENA KAGAN, Associate Justice.

For the Tenth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Eleventh Circuit, CLARENCE THOMAS, Associate Justice.

For the Federal Circuit, JOHN G. ROBERTS, JR., Chief Justice.

October 19, 2018.

(For next previous allotment, see 586 U. S., Pt. 1, p. III.)

INDEX

(Vol. 590 U. S., Part 1)

AWARD OF PROFITS. See **Lanham Act.**

CLAIM PRECLUSION. See **Preclusion Law.**

CLEAN WATER ACT.

Point source and nonpoint source pollution—Permitting requirements.—Act, which forbids “any addition” of any pollutant from “any point source” to “navigable waters” without appropriate EPA permit, 33 U. S. C. §§ 1311(a), 1362(12)(A), requires a permit when there is a direct discharge from a point source into navigable waters or when there is functional equivalent of a direct discharge. *County of Maui v. Hawaii Wildlife Fund*, p. 165.

COMPREHENSIVE ENVIRONMENTAL RESPONSE, COMPENSATION, AND LIABILITY ACT.

Environmental cleanups at Superfund sites—Pre-emption of state common-law claims.—Montana Supreme Court erred by holding that respondent landowners were not potentially responsible parties under CERCLA and thus did not need EPA’s approval to take remedial action. *Atlantic Richfield Co. v. Christian*, p. 1.

CONSTITUTIONAL LAW. See also **Federal Courts.**

Right to bear arms—Ban on transporting firearm outside city limits—Question of public safety and consistency with Second Amendment.—Petitioners’ claim for declaratory and injunctive relief with respect to City’s old rule on transporting firearms is moot, and any claim for damages with respect to that rule may be addressed in first instance by Court of Appeals and District Court on remand. *New York State Rifle & Pistol Assn., Inc. v. City of New York*, p. 336.

Right to jury trial—Sixth Amendment’s unanimous verdict guarantee—Extent of incorporation by Fourteenth Amendment.—Louisiana Court of Appeal’s holding that nonunanimous jury verdicts are constitutional is reversed. *Ramos v. Louisiana*, p. 83.

COPYRIGHT LAW.

Extent of government edicts doctrine—Works lacking the force of law.—Under government edicts doctrine, annotations beneath statutory

COPYRIGHT LAW—Continued.

provisions in Official Code of Georgia Annotated are ineligible for copyright protection. *Georgia v. Public Resource.Org, Inc.*, p. 255.

CRIMINAL LAW. See **Immigration Law.**

DISCHARGE OF WATER POLLUTANTS. See **Clean Water Act.**

DISCHARGE PERMITS. See **Clean Water Act.**

ENVIRONMENT. See **Clean Water Act; Comprehensive Environmental Response, Compensation, and Liability Act.**

FEDERAL COURTS.

Prohibition against encouraging or inducing illegal immigration—Question of constitutionality.—Ninth Circuit panel's drastic departure from principle of party presentation constituted an abuse of discretion where court decided a question never raised by respondent, namely, whether 8 U. S. C. § 1324(a)(1)(A)(iv) is unconstitutionally overbroad. *United States v. Sineneng-Smith*, p. 371.

FEDERAL WATER POLLUTION CONTROL ACT. See **Clean Water Act.**

FIREARMS. See **Constitutional Law.**

FOREIGN SOVEREIGN IMMUNITIES ACT. See **National Defense Authorization Act.**

FOURTEENTH AMENDMENT. See **Constitutional Law.**

GEORGIA. See **Copyright Law.**

GOVERNMENT PUBLICATIONS. See **Copyright Law.**

HAZARDOUS WASTE. See **Comprehensive Environmental Response, Compensation, and Liability Act.**

HEALTH CARE EXCHANGES. See **Patient Protection and Affordable Care Act.**

IMMIGRATION LAW. See also **Federal Courts.**

Lawful permanent resident rendered inadmissible—Stop-time rule.—In determining eligibility for cancellation of removal of a lawful permanent resident who commits a serious crime, an offense listed in 8 U. S. C. § 1182(a)(2) committed during initial seven years of residence need not be one of offenses of removal. *Barton v. Barr*, p. 222.

INCORPORATION. See **Constitutional Law.**

INTER PARTES REVIEW. See **Patent Law.**

ISSUE PRECLUSION. See **Preclusion Law.**

LANHAM ACT.

Award of profits for trademark violation—Showing of willful infringement not a prerequisite.—Plaintiff in a trademark infringement suit is not required to show that a defendant willfully infringed plaintiff's trademark as a precondition to an award of profits. *Romag Fasteners, Inc. v. Fossil Group, Inc.*, p. 212.

LOUISIANA. See **Constitutional Law.**

NATIONAL DEFENSE AUTHORIZATION ACT.

Terrorism exception to Foreign Sovereign Immunities Act—Punitive damages for past conduct.—Plaintiffs in a suit against a foreign state for personal injury or death caused by acts of terrorism under 28 U.S.C. § 1605A(c) may seek punitive damages for preenactment conduct. *Opati v. Republic of Sudan*, p. 418.

NAVIGABLE WATERS. See **Clean Water Act.**

NEW JERSEY. See **Wire Fraud.**

NEW YORK CITY. See **Constitutional Law.**

PATENT LAW.

Patent infringement complaint dismissed without prejudice—Finding that time bar did not apply.—Title 35 U.S.C. § 314(d) precludes judicial review of a Patent Trial and Appeal Board's decision to institute inter partes review upon finding that § 315(b)'s time bar did not apply. *Thryv, Inc. v. Click-To-Call Technologies, LP*, p. 45.

PATIENT PROTECTION AND AFFORDABLE CARE ACT.

Losses by health insurers joining health benefit exchanges—Statutory promise to pay insurers for losses.—Act's now expired "Risk Corridors" statute—which set a formula for calculating payments to healthcare insurers for unexpectedly unprofitable plans during first three years of online insurance marketplaces—created a Government obligation to pay insurers full amount of their computed losses; and petitioners properly relied on Tucker Act to sue for damages in Court of Federal Claims. *Maine Community Health Options v. United States*, p. 296.

POLITICAL RETRIBUTION. See **Wire Fraud.**

PRECLUSION LAW.

Second Circuit's "defense preclusion" rule—Raising defenses to claims not litigated earlier.—Because trademark action at issue challenged different conduct—and raised different claims—from an earlier action between parties, Marcel cannot preclude Lucky Brand from raising new

PRECLUSION LAW—Continued.

defenses, including a defense that Lucky Brand failed to press fully in earlier suit. *Lucky Brand Dungarees, Inc. v. Marcel Fashions Group, Inc.*, p. 405.

PRE-EMPTION OF STATE LAW. See **Comprehensive Environmental Response, Compensation, and Liability Act.**

PRINCIPLE OF PARTY PRESENTATION. See **Federal Courts.**

PUNITIVE DAMAGES. See **National Defense Authorization Act.**

REMOVAL. See **Immigration Law.**

SECOND AMENDMENT. See **Constitutional Law.**

SIXTH AMENDMENT. See **Constitutional Law.**

TERRORISM. See **National Defense Authorization Act.**

TIMELINESS OF ACTIONS. See **Patent Law.**

TRADEMARK INFRINGEMENT. See **Lanham Act.**

TRADEMARK LAW. See **Lanham Act; Preclusion Law.**

TRANSPORTATION OF FIREARMS. See **Constitutional Law.**

TUCKER ACT. See **Patient Protection and Affordable Care Act.**

UNANIMOUS JURY REQUIREMENT. See **Constitutional Law.**

WATER POLLUTION. See **Clean Water Act.**

WIRE FRAUD.

Federal wire fraud—Political retribution—Object of the fraud.—Because scheme to reduce number of George Washington Bridge toll lanes dedicated to Fort Lee, New Jersey, morning commuters as political retribution against Fort Lee's mayor did not aim to obtain money or property from federal Port Authority, petitioners could not have violated federal-program fraud or wire fraud laws. *Kelly v. United States*, p. 391.

WORDS AND PHRASES.

“[A]ny addition of any pollutant to navigable waters from any point source.” *Clean Water Act*, 33 U. S. C. § 1362(12)(A). *County of Maui v. Hawaii Wildlife Fund*, p. 165.

TABLE OF CASES REPORTED

(Vol. 590 U. S., Part 1)

NOTES:

This volume provides the permanent United States Reports citation for all reported cases. Cases reported before page 901 are those decided with opinions of the Court or decisions *per curiam*. Cases reported on page 901 *et seq.* are those in which orders were entered. Although the Table of Cases Reported does not list orders denying a petition for writ of certiorari, such orders are included chronologically in this volume.

The syllabus in a case constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader. See *United States v. Detroit Timber & Lumber Co.*, 200 U. S. 321, 337 (1906).

A list of counsel who argued or filed briefs in a reported case, and who were members of the Court's Bar at the time the case was argued, are included in the United States Reports along with the Court's opinion in the case.

	Page
Abdul-Latif <i>v.</i> United States	928
Adams <i>v.</i> Calhoun Cty., Mich.	903
Allen, <i>In re</i>	941
Allison; Jarvis <i>v.</i>	956
Alridge <i>v.</i> Louisiana	919
Arkansas; May <i>v.</i>	935
Armstrong <i>v.</i> Securities and Exchange Comm'n	935
Arunachalam <i>v.</i> Exxon Mobil Corp.	940
Arunachalam <i>v.</i> Intuit, Inc.	940
Arunachalam <i>v.</i> Lyft, Inc.	941
Arunachalam <i>v.</i> Uber Technologies, Inc.	957
Atlanta Gas Light Co. <i>v.</i> Bennett Regulator Guards, Inc.	919
Atlantic Richfield Co. <i>v.</i> Christian	1
Attorney General; Barton <i>v.</i>	222
Attorney General; Beers <i>v.</i>	940
Attorney General; Brown <i>v.</i>	901
Attorney General of Ark. <i>v.</i> Pharmaceutical Care Mgmt. Assn.	902
Attorney General of N. Y.; Smith <i>v.</i>	956

	Page
Atyia; Whitten <i>v.</i>	918
Baca; Colorado Dept. of State <i>v.</i>	903
Baker <i>v.</i> Macy's Fla. Stores, LLC	903
Ball <i>v.</i> Marion, Ill.	940
Bamdad, <i>In re</i>	941
Bandemer; Ford Motor Co. <i>v.</i>	902
Bank of New York Mellon; Ruttkamp <i>v.</i>	941
Banks <i>v.</i> Braun	941
Barnes & Thornburg LLP; Collins <i>v.</i>	934
Barr; Barton <i>v.</i>	222
Barr; Beers <i>v.</i>	940
Barr; Brown <i>v.</i>	901
Barton <i>v.</i> Barr	222
Batalla Vidal; Wolf <i>v.</i>	902
Beebe, <i>In re</i>	956
Beers <i>v.</i> Barr	940
Bell <i>v.</i> Ransom	918
Bennett Regulator Guards, Inc.; Atlanta Gas Light Co. <i>v.</i>	919
Bishay, <i>In re</i>	903
Borden <i>v.</i> United States	903
Boyett <i>v.</i> New Mexico	918
Braspenick <i>v.</i> Johnson Law PLC	418
Braun; Banks <i>v.</i>	941
Braun; Matthews <i>v.</i>	902
Bronsozian <i>v.</i> United States	901
Brooks <i>v.</i> Louisiana	920
Brown, <i>In re</i>	922
Brown <i>v.</i> Barr	901
Brown <i>v.</i> Florida	965
Brown; Popal <i>v.</i>	940
Brown <i>v.</i> San Bernardino Cty., Cal.	965
Calhoun Cty., Mich.; Adams <i>v.</i>	903
California; Sanchez <i>v.</i>	918
California; Yablonsky <i>v.</i>	935
Carter <i>v.</i> United States	956
Chambers <i>v.</i> Hardy	941
Christian; Atlantic Richfield Co. <i>v.</i>	1
CIC Services, LLC <i>v.</i> Internal Revenue Service	929
Ciotta, <i>In re</i>	942
City. See name of city.	
Clancy <i>v.</i> Florida Dept. of Corrections	956
Clark; Rowe <i>v.</i>	927
Click-To-Call Technologies, LP; Thryv, Inc. <i>v.</i>	45
Cobble <i>v.</i> United States	965

TABLE OF CASES REPORTED

IX

	Page
Collier; Valentine <i>v.</i>	935
Collins <i>v.</i> Barnes & Thornburg LLP	934
Collins <i>v.</i> Thornton	927
Colorado Dept. of State <i>v.</i> Baca	903
Commissioner; Shuman <i>v.</i>	927
Commissioner; Waltner <i>v.</i>	917
Conway; Wimbush <i>v.</i>	901
Cook Cty., Ill.; Wolf <i>v.</i>	919
Corrections Commissioner. See name of commissioner.	
Cotton <i>v.</i> Eckstein	956
County. See name of county.	
Crehan <i>v.</i> Louisiana	919
Davis, <i>In re</i>	922
Davis <i>v.</i> MTGLQ Investors, L. P.	918
Davis; Murphy <i>v.</i>	901
Davis; Ramirez <i>v.</i>	955
Davis <i>v.</i> Tegley	965
Denver Health and Hospital Auth.; Vazirabadi <i>v.</i>	965
Department of Homeland Security <i>v.</i> New York	918
Department of Homeland Security <i>v.</i> Regents of the Univ. of Cal.	902
Department of Justice <i>v.</i> House Comm. on the Judiciary	956
Deutsche Bank AG; Trump <i>v.</i>	921
Denville, <i>In re</i>	922
Diaz; Duran <i>v.</i>	956
Dick <i>v.</i> Oregon	919
Director of penal or correctional institution. See name or title of director.	
Duran <i>v.</i> Diaz	956
Dyson <i>v.</i> Louisiana	920
Eaton, <i>In re</i>	928
Eckstein; Cotton <i>v.</i>	956
Edmo; Idaho Dept. of Correction <i>v.</i>	957
Edwards <i>v.</i> Vannoy	929
Elim Romanian Pentecostal Church <i>v.</i> Pritzker	969
Environmental Research Center; Hotze Health Wellness Center <i>v.</i>	955
EEOC; R. G. & G. R. Harris Funeral Homes, Inc. <i>v.</i>	958
Estate. See name of estate.	
Ex parte. See name of party.	
Exxon Mobil Corp.; Arunachalam <i>v.</i>	940
Findlay, <i>In re</i>	942
Fleck <i>v.</i> Wetch	934
Florida; Brown <i>v.</i>	965
Florida; McKinnon <i>v.</i>	935
Florida Dept. of Corrections; Clancy <i>v.</i>	956

	Page
Ford Motor Co. <i>v.</i> Bandemer	902
Ford Motor Co. <i>v.</i> Montana Eighth Judicial Dist. Ct.	902
Fossil Group, Inc.; Romag Fasteners, Inc. <i>v.</i>	212
Fox <i>v.</i> U. S. Postal Service	921
Friends of DeVito <i>v.</i> Wolf	935
Georgia <i>v.</i> Public.Resource.Org, Inc.	255
Georgia State Univ. Admissions Office; Kemp <i>v.</i>	918
Google LLC <i>v.</i> Oracle America, Inc.	928
Governor of Cal.; South Bay United Pentecostal Church <i>v.</i>	965
Governor of Ill.; Elim Romanian Pentecostal Church <i>v.</i>	969
Governor of Pa.; Friends of DeVito <i>v.</i>	935
Greiner <i>v.</i> Macomb Cty., Mich.	958
G. R. Harris Funeral Homes, Inc. <i>v.</i> EEOC	958
Guernsey; Pearsall <i>v.</i>	918
Gulbrandson, <i>In re</i>	922
Hampton, <i>In re</i>	958
Hardy; Chambers <i>v.</i>	941
Hawaii Wildlife Fund; Maui Cty. <i>v.</i>	165
Heard <i>v.</i> Louisiana	919
Hennepin Cty. Human Service & Public Health Dept.; Sanders <i>v.</i>	965
Hill-Lomax <i>v.</i> Vittetoe	903
Hogue; Ramirez <i>v.</i>	955
Hotze Health Wellness Center <i>v.</i> Environmental Research Center	955
House Comm. on the Judiciary; Department of Justice <i>v.</i>	956
Hunter <i>v.</i> Murdoch	918
Hye-Young <i>v.</i> Secolsky	927
Idaho Dept. of Correction <i>v.</i> Edmo	957
Illinois; Peters <i>v.</i>	928
Inch; Wilson <i>v.</i>	935
<i>In re.</i> See name of party.	
Internal Revenue Service; CIC Services, LLC <i>v.</i>	929
Intuit, Inc.; Arunachalam <i>v.</i>	940
Jackson; Roberson <i>v.</i>	921
Jackson; Smith <i>v.</i>	418
Jarvis <i>v.</i> Allison	956
Jefferson <i>v.</i> Shinn	927
Johnson, <i>In re</i>	928
Johnson <i>v.</i> Louisiana	920
Johnson <i>v.</i> Morgan	921
Johnson Law PLC; Braspenick <i>v.</i>	418
Kane <i>v.</i> Pennsylvania	965
Kaneka Corp. <i>v.</i> Xiamen Kingdomway Group Co.	902
Karnofel <i>v.</i> Superior Waterproofing, Inc.	918
Kee <i>v.</i> Raemisch	928

TABLE OF CASES REPORTED

XI

	Page
Kelley; Lofton <i>v.</i>	934
Kelley; True <i>v.</i>	927
Kelly <i>v.</i> United States	391
Kemp <i>v.</i> Georgia State Univ. Admissions Office	918
Khrapko <i>v.</i> Splain	934
Kinder Morgan Energy Partners, L. P. <i>v.</i> Upstate Forever	928
Klieman's Estate <i>v.</i> Palestinian Auth.	920
Klieman's Estate <i>v.</i> Palestinian Interim Self-Government Auth.	920
Kowalski; Walton <i>v.</i>	928
Lasher <i>v.</i> Nebraska State Bd. of Pharmacy	922
Latham <i>v.</i> United States	918
LeBlanc; Marlowe <i>v.</i>	965
Leonard, <i>In re</i>	922
Lewis <i>v.</i> Louisiana	919
Lindsey <i>v.</i> United States	957
Little Sisters of the Poor <i>v.</i> Pennsylvania	902
Lofton <i>v.</i> Kelley	934
Lopez, <i>In re</i>	956
Lopez <i>v.</i> Lopez	940
Los Angeles Cty., Cal.; Oeur <i>v.</i>	956
Louisiana; Alridge <i>v.</i>	919
Louisiana; Brooks <i>v.</i>	920
Louisiana; Crehan <i>v.</i>	919
Louisiana; Dyson <i>v.</i>	920
Louisiana; Heard <i>v.</i>	919
Louisiana; Johnson <i>v.</i>	920
Louisiana; Lewis <i>v.</i>	919
Louisiana; Nagi <i>v.</i>	919
Louisiana; Ramos <i>v.</i>	83
Louisiana; Richards <i>v.</i>	920
Louisiana; Sheppard <i>v.</i>	919
Louisiana; Victor <i>v.</i>	920
Lowe <i>v.</i> Parris	935
Lucky Brand Dungarees, Inc. <i>v.</i> Marcel Fashions Group, Inc.	405
Lyft, Inc.; Arunachalam <i>v.</i>	941
Macomb Cty., Mich.; Greiner <i>v.</i>	958
Macy's Fla. Stores, LLC; Baker <i>v.</i>	903
Maine Community Health Options <i>v.</i> United States	296
Marcel Fashions Group, Inc.; Lucky Brand Dungarees, Inc. <i>v.</i>	405
Marcotte; Weixing Wang <i>v.</i>	941
Marion, Ill.; Ball <i>v.</i>	940
Marlowe <i>v.</i> LeBlanc	965
Martinez, <i>In re</i>	965
Martinez <i>v.</i> United States	921

	Page
Matthews <i>v.</i> Braun	902
Mattison, <i>In re</i>	935
Maui Cty. <i>v.</i> Hawaii Wildlife Fund	165
May <i>v.</i> Arkansas	935
Mazars USA, LLP; Trump <i>v.</i>	921
McDonald <i>v.</i> United States	918
McKinnon <i>v.</i> Florida	935
Mickens; Wimbush <i>v.</i>	903
Montana Eighth Judicial Dist. Ct.; Ford Motor Co. <i>v.</i>	902
Moon, <i>In re</i>	903
Moore <i>v.</i> United States	903
Morgan; Johnson <i>v.</i>	921
MTGLQ Investors, L. P.; Davis <i>v.</i>	918
Murdoch; Hunter <i>v.</i>	918
Murphy <i>v.</i> Davis	901
Nagi <i>v.</i> Louisiana	919
National Assn. for the Advancement of Colored People; Trump <i>v.</i>	902
National Public Radio; Yeager <i>v.</i>	934
Nebraska State Bd. of Pharmacy; Lasher <i>v.</i>	922
Neus; Rigwan <i>v.</i>	918
New Mexico; Boyett <i>v.</i>	918
Newsom; South Bay United Pentecostal Church <i>v.</i>	965
New York; Department of Homeland Security <i>v.</i>	918
New York City; New York State Rifle & Pistol Assn., Inc. <i>v.</i>	336
New York State Rifle & Pistol Assn., Inc. <i>v.</i> New York City	336
Norfolk, Va.; Perry-Bey <i>v.</i>	957
Nunu <i>v.</i> Risk	918
Oeur <i>v.</i> Los Angeles Cty., Cal.	956
Ohio; Rarden <i>v.</i>	918
Opati <i>v.</i> Republic of Sudan	418
Oracle America, Inc.; Google LLC <i>v.</i>	928
Oregon; Dick <i>v.</i>	919
Palestine Liberation Org.; Sokolow <i>v.</i>	921
Palestinian Auth.; Klieman's Estate <i>v.</i>	920
Palestinian Interim Self-Government Auth.; Klieman's Estate <i>v.</i>	920
Parris; Lowe <i>v.</i>	935
Payne; Weeks <i>v.</i>	941
Pearsall <i>v.</i> Guernsey	918
Pennsylvania; Kane <i>v.</i>	965
Pennsylvania; Little Sisters of the Poor <i>v.</i>	902
Pennsylvania; Trump <i>v.</i>	902
Perkins, <i>In re</i>	958
Perry-Bey <i>v.</i> Norfolk, Va.	957
Peters <i>v.</i> Illinois	928

TABLE OF CASES REPORTED

XIII

	Page
Pharmaceutical Care Mgmt. Assn.; Rutledge <i>v.</i>	902
Philadelphia, Pa.; Purisima <i>v.</i>	928
Popal <i>v.</i> Brown	940
President of United States <i>v.</i> NAACP	902
President of United States <i>v.</i> Pennsylvania	902
Pritzker; Elim Romanian Pentecostal Church <i>v.</i>	969
Pryor <i>v.</i> United States	935
Public.Resource.Org, Inc.; Georgia <i>v.</i>	255
Purisima <i>v.</i> Philadelphia, Pa.	928
Raemisch; Kee <i>v.</i>	928
Raghubir, <i>In re</i>	958
Ramirez <i>v.</i> Davis	955
Ramirez <i>v.</i> Hogue	955
Ramos <i>v.</i> Louisiana	83
Randall, <i>In re</i>	418
Ransom; Bell <i>v.</i>	918
Rarden <i>v.</i> Ohio	918
Regents of the Univ. of Cal.; Department of Homeland Security <i>v.</i>	902
Rendelman <i>v.</i> True	901
Republic of Sudan; Opati <i>v.</i>	418
R. G. & G. R. Harris Funeral Homes, Inc. <i>v.</i> EEOC	958
Rhodes; Rosa <i>v.</i>	418
Richards <i>v.</i> Louisiana	920
Rigwan <i>v.</i> Neus	918
Risk; Nunu <i>v.</i>	918
Roberson <i>v.</i> Jackson	921
Romag Fasteners, Inc. <i>v.</i> Fossil Group, Inc.	212
Romero, <i>In re</i>	958
Rosa <i>v.</i> Rhodes	418
Rosas <i>v.</i> University of Tex. at San Antonio	941
Rose <i>v.</i> United States	934
Rowe <i>v.</i> Clark	927
Rutledge <i>v.</i> Pharmaceutical Care Mgmt. Assn.	902
Ruttkamp <i>v.</i> Bank of New York Mellon	941
St. Joseph's/Candler Health System, Inc.; Smith <i>v.</i>	918
San Bernardino Cty., Cal.; Brown <i>v.</i>	965
Sanchez <i>v.</i> California	918
Sanders <i>v.</i> Hennepin Cty. Human Service & Public Health Dept.	965
Sanders <i>v.</i> United States	928
Sarver's Realty; Shampine <i>v.</i>	965
Schwaller; Tooty <i>v.</i>	935
Scott; Smith <i>v.</i>	956
Secolsky; Hye-Young <i>v.</i>	927
SEC; Armstrong <i>v.</i>	935

	Page
Shampine <i>v.</i> Sarver's Realty	965
Sheppard <i>v.</i> Louisiana	919
Shinn; Jefferson <i>v.</i>	927
Shuman <i>v.</i> Commissioner	927
Sineneng-Smith; United States <i>v.</i>	371
Smith, <i>In re</i>	928
Smith <i>v.</i> Jackson	418
Smith <i>v.</i> St. Joseph's/Candler Health System, Inc.	918
Smith <i>v.</i> Scott	956
Smith <i>v.</i> Underwood	956
Smith <i>v.</i> University of Chicago Medical Center	958
Sokolow <i>v.</i> Palestine Liberation Org.	921
South Bay United Pentecostal Church <i>v.</i> Newsom	965
Splain; Khrapko <i>v.</i>	934
Starks, <i>In re</i>	903
Starling, <i>In re</i>	941
Strange, <i>In re</i>	903
Sudan; Opati <i>v.</i>	418
Superintendent of penal or correctional institution. See name or title of superintendent.	
Superior Communications, Inc. <i>v.</i> Voltstar Technologies, Inc.	919
Superior Waterproofing, Inc.; Karnofel <i>v.</i>	918
Taco Bell; Williams <i>v.</i>	956
Tanamor-Steffan, <i>In re</i>	922
TCT Mobile International Ltd., <i>In re</i>	928
Tegley; Davis <i>v.</i>	965
Thornton; Collins <i>v.</i>	927
Thryv, Inc. <i>v.</i> Click-To-Call Technologies, LP	45
Tooly <i>v.</i> Schwaller	935
Townsend, <i>In re</i>	942
True <i>v.</i> Kelley	927
True; Rendelman <i>v.</i>	901
Trump <i>v.</i> Deutsche Bank AG	921
Trump <i>v.</i> Mazars USA, LLP	921
Trump <i>v.</i> National Assn. for the Advancement of Colored People	902
Trump <i>v.</i> Pennsylvania	902
Uber Technologies, Inc.; Arunachalam <i>v.</i>	957
Underwood; Smith <i>v.</i>	956
United States. See name of other party.	
U. S. Postal Service; Fox <i>v.</i>	921
University of Chicago Medical Center; Smith <i>v.</i>	958
University of Tex. at San Antonio; Rosas <i>v.</i>	941
Upstate Forever; Kinder Morgan Energy Partners, L. P. <i>v.</i>	928
Valentine <i>v.</i> Collier	935

TABLE OF CASES REPORTED

xv

	Page
Van Buren <i>v.</i> United States	903
Vannoy; Edwards <i>v.</i>	929
Vazirabadi <i>v.</i> Denver Health and Hospital Auth.	965
Victor <i>v.</i> Louisiana	920
Vidal; Wolf <i>v.</i>	902
Vittetoe; Hill-Lomax <i>v.</i>	903
Voltstar Technologies, Inc.; Superior Communications, Inc. <i>v.</i> ...	919
Wallace, <i>In re</i>	956
Wallace <i>v.</i> United States	956
Waltner <i>v.</i> Commissioner	917
Walton <i>v.</i> Kowalski	928
Wang <i>v.</i> Marcotte	941
Warden. See name of warden.	
Watson, <i>In re</i>	942
Weeks <i>v.</i> Payne	941
Weixing Wang <i>v.</i> Marcotte	941
Wetch; Fleck <i>v.</i>	934
White, <i>In re</i>	903
Whitten <i>v.</i> Atyia	918
Wichita, Kan.; Williamson <i>v.</i>	918
Williams, <i>In re</i>	922,942
Williams <i>v.</i> Taco Bell	956
Williams <i>v.</i> Wilson	957
Williamson <i>v.</i> Wichita, Kan.	918
Wilson <i>v.</i> Inch	935
Wilson; Williams <i>v.</i>	957
Wimbush <i>v.</i> Conway	901
Wimbush <i>v.</i> Mickens	903
Wolf <i>v.</i> Batalla Vidal	902
Wolf <i>v.</i> Cook Cty., Ill.	919
Wolf; Friends of DeVito <i>v.</i>	935
Woodson, <i>In re</i>	928
Xiamen Kingdomway Group Co.; Kaneka Corp. <i>v.</i>	902
Yablonsky <i>v.</i> California	935
Yeager <i>v.</i> National Public Radio	934
Young, <i>In re</i>	958

CASES ADJUDGED
IN THE
SUPREME COURT OF THE UNITED STATES
AT
OCTOBER TERM, 2019

ATLANTIC RICHFIELD CO. *v.* CHRISTIAN ET AL.

CERTIORARI TO THE SUPREME COURT OF MONTANA

No. 17–1498. Argued December 3, 2019—Decided April 20, 2020

The Comprehensive Environmental Response, Compensation, and Liability Act, 42 U.S.C. § 9601 *et seq.*, also known as the Superfund statute, promotes “the timely cleanup of hazardous waste sites and [ensures] that the costs of such cleanup efforts [are] borne by those responsible for the contamination,” *CTS Corp. v. Waldburger*, 573 U.S. 1, 4 (internal quotation marks omitted). The Act directs the Environmental Protection Agency to compile and annually revise a prioritized list of contaminated sites for cleanup, known as Superfund sites, and makes responsible parties liable for the cost of the cleanup. Before a cleanup plan is selected, a remedial investigation and feasibility study is conducted to assess the contamination and evaluate cleanup options. Once that study begins, § 122(e)(6) of the Act provides, “no potentially responsible party may undertake any remedial action” at the site without EPA approval. To insulate cleanup plans from collateral attack, § 113(b) provides federal district courts with “exclusive original jurisdiction over all controversies arising under” the Act, and § 113(h) then strips those courts of jurisdiction “to review any challenges to removal or remedial action,” except in five limited circumstances.

For nearly a century, the Anaconda Copper Smelter in Butte, Montana contaminated an area of over 300 square miles with arsenic and lead. Over the past 35 years, EPA has worked with the current owner of the now-closed smelter, Atlantic Richfield Company, to implement a cleanup plan for a remediation expected to continue through 2025. A group of

Syllabus

98 landowners sued Atlantic Richfield in Montana state court for common law nuisance, trespass, and strict liability, seeking restoration damages, which Montana law requires to be spent on property rehabilitation. The landowners’ proposed plan exceeds the measures found necessary to protect human health and the environment by EPA. The trial court granted summary judgment to the landowners on the issue of whether the Act precluded their restoration damages claim and allowed the lawsuit to continue. After granting a writ of supervisory control, the Montana Supreme Court affirmed, rejecting Atlantic Richfield’s argument that § 113 stripped the Montana courts of jurisdiction over the landowners’ claim and concluding that the landowners were not potentially responsible parties (or PRPs) prohibited from taking remedial action without EPA approval under § 122(e)(6).

Held:

1. This Court has jurisdiction to review the Montana Supreme Court’s decision. To qualify as a final judgment subject to review under 28 U. S. C. § 1257(a), a state court judgment must be “an effective determination of the litigation and not of merely interlocutory or intermediate steps therein.” *Jefferson v. City of Tarrant*, 522 U. S. 75, 81. Under Montana law, a supervisory writ proceeding is a self-contained case, not an interlocutory appeal. Mont. Const., Art. VII, §§ 2(1)–(2); Mont. Rules App. Proc. 6(6), 14(1), 14(3). Thus, the writ issued in this case is a “final judgment” within this Court’s jurisdiction. *Fisher v. District Court of Sixteenth Judicial Dist. of Mont.*, 424 U. S. 382, 385, n. 7. Pp. 11–12.

2. The Act does not strip the Montana courts of jurisdiction over this lawsuit. Section 113(b) of the Act provides that “the United States district courts shall have exclusive original jurisdiction over all controversies arising under this chapter,” so state courts lack jurisdiction over such actions. The use of “arising under” in § 113(b) echoes Congress’s more familiar use of that phrase in granting federal courts jurisdiction over “all civil actions arising under the Constitution, laws, or treaties of the United States.” 28 U. S. C. § 1331. In the mine run of cases, “[a] suit arises under the law that creates the cause of action.” *American Well Works Co. v. Layne & Bowler Co.*, 241 U. S. 257, 260. The landowners’ common law nuisance, trespass, and strict liability claims arise under Montana law and not under the Act.

Atlantic Richfield mistakenly argues that § 113(h)—which states that “[n]o Federal court shall have jurisdiction under Federal law . . . to review any challenges to removal or remedial action” selected under the Act—implicitly broadens the scope of actions precluded from state court jurisdiction under § 113(b). But § 113(h) speaks of “Federal court[s],” not state courts. There is no textual basis for Atlantic Richfield’s argu-

Syllabus

ment that Congress precluded *state* courts from hearing a category of cases in § 113(b) by stripping *federal* courts of jurisdiction over those cases in § 113(h). Often the simplest explanation is the best: Section 113(b) deprives state courts of jurisdiction over cases “arising under” the Act—just as it says—while § 113(h) deprives federal courts of jurisdiction over certain “challenges” to Superfund remedial actions—just as it says. Pp. 12–17.

3. The Montana Supreme Court erred by holding that the landowners were not potentially responsible parties under the Act and thus did not need EPA approval to take remedial action. To determine who is a potentially responsible party, the Court looks to the list of “covered persons” in § 107, the Act’s liability section, which includes any “owner” of “a facility.” “Facility” in turn is defined to include “any site or area where a hazardous substance has been deposited, stored, disposed of, or placed, or otherwise come to be located.” 42 U. S. C. § 9601(9)(B). Because arsenic and lead are hazardous substances that have “come to be located” on the landowners’ properties, the landowners are potentially responsible parties.

The landowners argue they are no longer potentially responsible parties because the Act’s six-year limitations period for recovery of remedial costs has run, and thus they could not be held liable in a hypothetical lawsuit. But even “‘innocent’ . . . landowner[s] whose land has been contaminated by another,” and who are thus shielded from liability by § 107(b)(3)’s so-called “innocent landowner” or “third party” defense, “may fall within the broad definitions of PRPs in §§ 107(a)(1)–(4).” *United States v. Atlantic Research Corp.*, 551 U. S. 128, 136. The same principle holds true for parties facing no liability because of the Act’s limitations period.

Interpreting “potentially responsible parties” to include owners of polluted property reflects the Act’s objective to develop a “Comprehensive Environmental Response” to hazardous waste pollution. Section 122(e)(6) is one of several tools in the Act that ensures the careful development of a single EPA-led cleanup effort rather than tens of thousands of competing individual ones.

Yet under the landowners’ interpretation, property owners would be free to dig up arsenic-infected soil and build trenches to redirect lead-contaminated groundwater without even notifying EPA, so long as they have not been sued within six years of commencement of the cleanup. Congress did not provide such a fragile remedy for such a serious problem.

The landowners alternatively argue that they are not potentially responsible parties because they did not receive the notice of settlement

Syllabus

negotiations required by § 122(e)(1). EPA has a policy of not suing innocent homeowners for pollution they did not cause, so it did not include the landowners in settlement negotiations. But EPA's nonenforcement policy does not alter the landowners' status as potentially responsible parties. Section 107(a) unambiguously defines potentially responsible parties, and EPA does not have authority to alter that definition.

The landowners also argue that § 122(e)(6) cannot carry the weight ascribed to it because it is located in the section on settlement negotiations. Settlements, however, are the heart of the Superfund statute. Section 122(a) of the Act commands EPA to proceed by settlement “[w]henever practicable and in the public interest . . . in order to expedite effective remedial actions and minimize litigation.” And EPA's efforts to negotiate settlement agreements and issue orders for cleanups account for approximately 69% of all cleanup work currently underway. Pp. 17–26.

390 Mont. 76, 408 P. 3d 515, affirmed in part, vacated in part, and remanded.

ROBERTS, C. J., delivered the opinion of the Court, Parts I and II–A of which were unanimous, Part II–B of which was joined by THOMAS, GINSBURG, BREYER, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., and Part III of which was joined by GINSBURG, BREYER, ALITO, SOTOMAYOR, KAGAN, and KAVANAUGH, JJ. ALITO, J., filed an opinion concurring in part and dissenting in part, *post*, p. 26. GORSUCH, J., filed an opinion concurring in part and dissenting in part, in which THOMAS, J., joined, *post*, p. 34.

Lisa S. Blatt argued the cause for petitioner. With her on the briefs were *John S. Williams*, *Sarah M. Harris*, *Charles L. McCloud*, *Robert J. Katerberg*, *Elisabeth S. Theodore*, *Stephen K. Wirth*, *Jonathan W. Rauchway*, and *Shannon W. Stevenson*.

Christopher G. Michel argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco*, *Deputy Assistant Attorney General Grant*, and *Deputy Solicitor General Stewart*.

Joseph R. Palmore argued the cause for respondents. With him on the brief were *Deanne E. Maynard*, *Dustin C.*